

Court No. - 39

Case :- WRIT - C No. - 3842 of 2021

Petitioner :- Mahendra Singh @ Omprakash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Jadu Nandan Yadav, Arimardan Yadav

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing on behalf of respondent nos. 1, 2 and 3 and Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent nos. 4 and 5.

This writ petition has been filed seeking following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 06.01.2021 issued from the office of respondent no. 3.

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no. 5 not to harass the petitioner in pursuance of the recovery citation dated 06.01.2021."

Learned counsel appearing on behalf of Power Corporation submits that the petitioner had already filed a civil suit for restoration of the electricity which is still pending. The petitioner is now disputing the recovery amount as mentioned in the impugned recovery citation, for which, he may approach before the Redressal Forum U/s 7.10 of U.P. Electricity Supply Code, 2005 or he may approach before the Civil Court, bringing to the notice, about the recovery citation issued against him.

However, learned counsel for the petitioner earnestly urged that the impugned recovery citation has been issued when the petitioner's electricity connection was disconnected for which, he was compelled to file a civil suit. The electric connection has not been restored and arbitrarily initiated recovery proceedings by the respondent no. 5 vide Annexure 4 dated 28.7.2020.

Considering the submission of learned counsel for the respondent nos. 4 and 5 but without entering into the merits of the case, this writ petition is ***disposed of*** with a direction to the petitioner to approach before the Redressal Forum under Clause 7.10 of U.P. Electricity

Supply Code, 2005 within a period of two weeks' which shall be considered and decided by the Forum by speaking and reasoned order after due opportunity of hearing within 4 weeks' thereafter.

The proceedings pursuant to the recovery citation dated 6.1.2021 issued by the respondent no. 3 shall be kept in abeyance till the final decision of the said complaint.

Order Date :- 5.2.2021

Saurabh